

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 4176

By: Staires

AS INTRODUCED

An Act relating to civil procedure; amending 76 O.S. 2021, Section 18, which relates to statute of limitations for medical malpractice; extending statute of limitations for causes of action arising on or after certain date; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 76 O.S. 2021, Section 18, is amended to read as follows:

Section 18. ~~An~~ A. For causes of action arising before November 1, 2026, an action for damages for injury or death against any physician, health care provider, or hospital licensed under the laws of this state, whether based in tort, breach of contract, or otherwise, arising out of patient care, shall be brought within two (2) years of the date the plaintiff knew or should have known, through the exercise of reasonable diligence, of the existence of the death, injury, or condition complained of; provided, however, the minority or incompetency when the cause of action arises will extend said period of limitation.

1 B. For causes of action arising on or after November 1, 2026,
2 an action for damages for injury or death against any physician,
3 health care provider, or hospital licensed under the laws of this
4 state, whether based in tort, breach of contract, or otherwise,
5 arising out of patient care, shall be brought within three (3) years
6 of the date the plaintiff knew or should have known, through the
7 exercise of reasonable diligence, of the existence of the death,
8 injury, or condition complained of; provided, however, the minority
9 or incompetency when the cause of action arises will extend said
10 period of limitation.

11 SECTION 2. This act shall become effective November 1, 2026.

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